

DEC.

AHC

25¢

Dynamic **Science Fiction**

132
PAGES

I AM TOMORROW

**Astonishing Novelet
by Lester del Rey**

**Plus Stories
by
H. B. FYFE
ALFRED COPPEL
DAVE DRYFOOS**

**ALL STORIES NEW
No Reprints**



DEC.

ANC

25¢

Dynamic **Science Fiction**

132
PAGES

I AM TOMORROW

Astonishing Novelet

by Lester del Rey

Plus Stories

by

H. B. FYFE

ALFRED COPPEL

DAVE DRYFOOS

**ALL STORIES NEW
No Reprints**

4
DOUBLE-ACTION
MAGAZINE



The Project Gutenberg eBook of Public enemy

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Public enemy

Author: Kendell Foster Crossen

Illustrator: Leslie Ross

Release date: August 4, 2026 [eBook #79265]

Language: English

Original publication: Holyoke, Mass.: Columbia Publications, Inc., 1952

Other information and formats: www.gutenberg.org/ebooks/79265

Credits: Tom Trussel (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK PUBLIC ENEMY

Transcribed from Dynamic Science Fiction, December 1952 (Vol. 1, No. 1).

Public Enemy

by **Kendell Foster Crossen**

At long last, Public Police Officer Brad Raynor was going to see some action—perhaps he'd have some of the excitement that policemen in the past experienced every day!

Brad Raynor cruised in the one thousand level above Nyork and tried to suppress his boredom. Because of his training he was aware that dull routine was preferable, but emotionally he yearned for a little action.

This was Public Police Officer Brad Raynor's fifth day in uniform. It had taken him seven years to achieve that uniform; four years at Harvard and three years at the University of Public Protection. His three degrees—one in psychology, one in sociology, one in criminalistics—were announced to the world by the neat blue uniform and the badge, Number 42,151, he wore.

"Car three thirty-seven," said the voice over the audio-speaker. Brad Raynor tensed at the first sound of the voice, then relaxed as he heard the number. "Proceed to street level at two eighty-four West Seventieth Street. Signal eighty-three."

Signal eighty-three meant a minor domestic adjustment problem. Brad Raynor idly watched the swerving speck of light on the patrol screen, which indicated the path of Car 337, and sighed.

Secretly, he was amused at himself. No one was prouder than Brad Raynor of the progress made by the middle of the 32nd Century, while all of his training had been directed toward increasing that progress. Still, only five days after becoming a part of the Public Police Administration, he found himself longing for the "good old days" he'd read about when the cops went after a fugitive with blazing guns.

Not that he was unarmed. The police cruiser was equipped with everything from a lightweight atomic cannon to a tiny nerve-gun which could be concealed between two fingers. Nevertheless, it was a fact that there was seldom any need for the weapons and Brad Raynor was young enough to indulge occasionally in romantic fantasy. In reality, he knew there was nothing romantic about the "good old days." A complete history of police work was, of course, a required subject at the university and he was well aware that in the old days most of the police had been incompetent, generally brutal, and for the most part held in contempt by the Public. A favorite subject during some of the bull sessions had been the old question of whether the actions of the police produced the public attitude or whether the attitude formed the police mentality. All of that, of course, had been changed by the 21st Century. Since then all policemen had to be adequately

trained and the national, state, and city officials over them were elected by the voters.

“Car two ninety-one,” droned the voice from the audio-speaker. “A speeding air-car is headed up toward your sector. Intercept and investigate the cause.”

Brad Raynor glanced at the chronograph on his instrument panel and saw that it was eighteen hundred. He leaned back, lifted the panel behind his seat and removed the record film for the past hour. He inserted it in the projector and quickly ran it off. The film showed all the details of the streets and houses over which he had passed during the previous hour. He spotted nothing unusual and the film was put away to be handed in when his patrol was over.

“Routine,” he muttered to himself. He grinned and reached for the audio-phone. “Car three hundred, on course, at eighteen hundred plus,” he reported. He swung the phone back into place and idly watched the pips of light on the patrol screen.

“Car three twenty. Proceed to street level at one twenty-six East Fifty-third Street and arrest citizen Jon Bair. There’ll be a complete report on your tape by the time you get there in the event you need it. Bair has been under voluntary treatment at Therapy Control because of having trouble with his neighbor, but he has just destroyed some property belonging to this neighbor. Arraign him on the charge of destroying private property, then deliver him to Therapy Control. Watch your screen for a photograph of Bair.”

And that’s the way it goes, thought Brad Raynor. Even though he knew it was almost impossible, he found himself wishing that someone would rob a bank—in his sector, naturally. It would be nice to have a citation on his blue uniform when he got married, an event which was but two weeks away.

“Car three hundred,” the voice said sharply. That was his number, but it was the tone that caused Brad Raynor to straighten up. “Citizen Will Howard broke into the home of Jan Laird, Mayor Of Nyork, ten minutes ago. He stole two hundred world credits, in cash, and a smallbore energy gun. Upon leaving the premises, he encountered Public Officer Arthur Sommers and killed him without warning.” The voice paused briefly, then continued.

“The fugitive escaped in an air-car belonging to the city. He is now in your sector, at the three thousand level—Horizontal sixty-two, approaching Vertical ninety-one.”

The voice droned on, giving a description of the fugitive which included his brain-wave pattern and a chemical analysis, but Brad Raynor was already in action. He still heard the voice and was memorizing the description, but with his left hand he touched the controls so that the cruiser tilted up and leaped ahead. With his right hand, he swung the radarscope. A minute later, he was picking up the echo of the returning signal. He triggered the cybernetic control and glanced at the tape. The fugitive was traveling at eight hundred miles per hour and still accelerating.

Although this was his first case, Brad Raynor had been so well trained that all of this was already second nature to him. Even as he glanced at the tape-reading, he was punching the fugitive’s brain-wave pattern into the encephalscope and swinging it onto the fix held by the radarscope. A rhythmic pinging came from the tiny receiver and he knew that he was following the right man.

“Watch your screen for the film record of the fugitive’s escape,” said the voice from the audio-speaker.

Brad Raynor glanced up at the video-screen and a moment later saw a full color shot of a big, furtive-looking man hurrying into an air-car. It was enough for a sight identification, despite the briefness. Brad knew that it had been caught by the side-camera of one of the street-level patrol cars and he felt a surge of pride at the speed with which headquarters had located it, taken a videoprint and beamed it to him.

“Warning,” said the headquarter’s voice. “The fugitive is armed and is obviously in an unstable condition.”

Brad Raynor grinned up at the audio-speaker. This was turning into just the sort of assignment he’d been thinking about. “Car three hundred,” the voice said sharply—and it was almost as if the Assignment Officer were reading his mind, although actually he was merely remembering when he too had

been a probation patrolman—"under any circumstances, bring this man in alive."

That was all, but Brad Raynor knew the Assignment Officer was reminding him of Rule 127 in the Handbook of Public Police Procedure. Like the other rules, it was indelibly fixed in his mind. "Public Officers must at all times remember that the criminal is merely a person at odds with his society. The Public Police Administration was not formed to preside at the execution of citizens. Except in those instances where a large segment of the population is endangered, the Officer *must always* deliver his prisoner alive. Insofar as it's possible, the criminal must make amends for the results of his crime, and this might be called punishment, but the chief duty of the police is to see that he is brought in for therapy. A criminal cured is a citizen saved."

Brad Raynor watched the air-speed needle move past the twelve hundred mark and knew he was gaining on his quarry. He glanced at his other instruments and was surprised to see that he was already up to fifteen thousand feet. Since the cruiser was built to adjust its oxygen supply and pressure automatically, height was no problem. It might, however, cause another problem. Frowning, Brad leaned over and triggered the cybernetic control. The tape revealed that the other ship was at twenty-five thousand.

He pulled the audio-phone to him. "Car three hundred," he reported, "at fifteen thousand feet, gaining. The fugitive is now at twenty-five thousand feet, obviously heading out."

"Try to intercept him before he reaches the limits of Earth's atmosphere," the Assignment Officer said over the speaker. "If this is not possible, then your orders are to arrest him whenever possible. We will arrange clearance with the Space Patrol and with any planetary government when needed. Use your own judgement in the matter of time and place."

Being a normal young man who had never traveled farther than the moon, there was a minute when Brad Raynor thought of letting the fugitive escape from Earth and then catching up with him on, perhaps, Mars. But it lasted no more than a minute, for he took very seriously the responsibility which went with the neat blue uniform. He reached over and shoved the power full on. The cruiser surged forward.

The police cruiser was within a thousand feet of the fleeing air-car by the time they were twenty miles above the surface of the earth. Brad Raynor switched on his sighting screen, turned the nose-cannon over to *Manual* and fired a shot which would explode well ahead of the other ship. He pulled over the audio-phone and thumbed the button on its side.

“Public Officer Brad Raynor calling Nyork city car, registration 12Z,” he said. He knew the occupant of the car would hear him whether his receiver was on or not. Every air-car built contained a panel which would automatically pickup police calls sent out on a tight beam limited to police work. “City car 12Z, pull up and surrender.”

For a moment, the air-car continued at the same speed. Then it began to slow up, finally becoming stationary at an altitude of twenty-five miles. The police cruiser approached cautiously, Brad holding himself in readiness to send it flashing away if the other ship tried to ram him. When the two craft were a mere hundred feet apart, he stopped the cruiser and stabilized it. He was sure that city air-cars were not normally armed and the appearance of the ship in the forward viewing screen revealed nothing that looked like armament. With that, Brad Raynor leaned over and pressed a button on the control panel projecting a tractor beam.

But even as the beam reached for the other ship, it moved. Straight down it flashed, the backwash of power rocking the police cruiser. The tractor beam gyrated in empty space and dissipated itself. Brad switched off the beam, savagely jammed the power on and brought the cruiser around in a whirling dive. But even so the ruse had given the other a start. As the radarscope lined up on the fleeing ship, it was already thirty miles away and accelerating madly. Brad shot the cruiser in pursuit.

It was a wild race earthward. But the fugitive’s craft had gained just enough of a lead by the maneuver to stay in front, and it pulled out of the dive only a few hundred feet above the ground. So quickly did the dive end, there was a moment when Brad thought his stomach wouldn’t make it.

They had come down over a small town which Brad recognized as one of the suburbs lying north of Nyork. The ship ahead of him darted down to

within a few feet of the street and began zooming among the buildings. Brad Raynor followed. As he did so, he thrust his left foot down on a button on the floor and held it there. The grilled nose of the cruiser began broadcasting supersonic waves, out and around the ship ahead, to be picked up by an oncoming craft so that they could get out of the way. At the same time, he flipped another switch which automatically sent out a police identification signal which would be picked up by any other police car in the neighborhood.

Once more the police cruiser slowly gained on the car ahead. Brad was strained forward in his seat, squeezing every bit of speed out of the cruiser that was possible as they zigzagged around buildings. He watched as the nose of the cruiser reached the tail of the other car, then crept up along the side. He was holding a slight elevation advantage of the other and now he began nosing it to the side and down. It was a delicate operation, with both ships traveling at well over a hundred miles per hour, where one slip might crash both of them.

Then, suddenly, the fleeing car heeled over and flashed into a narrow alley. Brad saw it scrape the side of the building as he flashed by and he winced. Crushing, he threw the cruiser up in a tight top loop, cutting speed at the same time. Even so, he lost several minutes getting back to the alley.

The city air-car was parked inside the alley, on the ground. There was a long dent on one side where it had scraped the wall, but otherwise it seemed undamaged. Brad grounded his cruiser behind it. He swung the encephalscope on the ship, but there was no answering *peep*. It meant that the fugitive had already left the car.

He opened the emergency panel in the cruiser and took out a smaller, portable encephalscope. He hesitated, then took from the rack over his head the tiny nerve-gun. A moment later, he stepped out into the alley. He slowly swung the encephalscope around until it emitted a slight sound. It was pointed toward the solid wall rising beside him.

Brad walked out of the alley and to the front of the building. It was a large apartment house and the faint *peep* from the encephalscope told him that

the fugitive was somewhere inside.

The front door was locked and there were a number of push-buttons along the wall, each one with a tiny two-way video-screen above it. But Brad went directly to the door. He pulled an electronic pick from his pocket and bent over the lock. The door swung open.

Inside, Brad paced along the hall, swinging the encephalscope from door to door. He did the same thing on the second and then on the third floor. It was on the third floor that he finally pointed the instrument to a door and was rewarded with a strong, steady chatter from it.

Again, he used the electronic pick. Then, holding the nerve-gun concealed in his hand, he kicked the door open.

Directly inside, energy gun gripped in shaking hand, stood the large man who had been pictured in the film strip flashed on Brad's screen. For what seemed like several long minutes the two men stared at each other, while the encephalscope fairly purred.

"Drop it," Brad said finally. "It'll do you no good to fight. Even if you get the best of me, you can't escape. There'll be a thousand encephalscopes searching you out the minute my next report fails to come in. So, drop it."

There was another wait, while the hand that held the energy gun trembled more violently. Then, slowly, reluctantly, the fingers spread and the gun dropped to the floor. "Damn you to hell," the man said bitterly. "Damn all science!"

"You're wrong," Brad said, leaning over to pick up the gun. "Now you feel that you wouldn't have been caught if it hadn't been for science—but the truth is that if it weren't for science you would have been killed while trying to escape. Come along." He followed the prisoner from the building.

Twenty-four hours later Brad Raynor landed his cruiser in the space on the roof of the Justice Building in the 22nd Sector of Nyork. Herding his prisoner ahead of him, he entered an elevator and they were carried down to the hearing rooms.

The Public Justice Administrator looked up as they entered. Then he glanced back for a moment at his desk. “You must be Public Officer Raynor,” he said with a smile. “I see that your assignment is the only thing open in this Sector.”

“Yes sir,” Brad said, saluting. “This is my prisoner.”

“Will you charge him, Officer Raynor?”

“Yes, sir. As an officer of the Public Police Administration, I charge this man—Jan Laird, Mayor of Nyork—with the crime of negligence in his responsibility to the people of this city. A citizen, one Will Howard, was permitted to go unemployed. As a result of the unemployment, Will Howard committed robbery and in leaving the premises shot and killed a public officer.”

“How do you plead, Mayor Laird?” the Administrator asked.

There was a moment of silence. Then, “Guilty,” the mayor said huskily.

The Administrator glanced at the papers on his desk. “Your crime, Mayor Laird,” he said, “is doubly serious because of the high position to which you were elected by the people. We have already discovered a number of other citizens who have become slightly unstable because of feeling that they are in a hostile environment. Fortunately, Will Howard was the only one who had reached the point of direct action. I have a report from Therapy Control stating that he will need five or six months of therapy before once again being a smoothly-functioning individual.

“I notice, Mayor Laird, that you have done well in private enterprise and possess considerable surplus wealth. Therefore, it is the judgement of this Administration that you be appointed the guardian of the wife and children of the slain Public Officer Arthur Sommers, responsible for their economic security. This responsibility will continue for the life of the widow and will include the children until they have finished university training. You are also removed as mayor of this city. This is the extent of this Administration’s concern with you. You will now be turned over to Therapy Control for proper treatment.”

With bowed head, the former mayor turned away.

“Good work, Officer Raynor,” the Administrator called after them. Brad Raynor followed the prisoner out, feeling every inch a cop and no longer wishing for the “good old days.”

Transcriber's note:

This etext was produced from Dynamic Science Fiction, December 1952 (Vol. 1, No. 1). Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.

Obvious errors have been silently corrected in this version, but minor inconsistencies have been retained as printed.

*** END OF THE PROJECT GUTENBERG EBOOK PUBLIC ENEMY

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.